



COLORADO DIVISION OF MINERALS AND GEOLOGY
MINERALS PROGRAM INSPECTION REPORT

PHONE: (303) 866-3567

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The Division of Minerals and Geology has conducted an inspection of the mining operation noted below. This report documents observations concerning compliance of the mining operation with the permit and the regulations of the Mined Land Reclamation Board. The report notes 1) Areas of successful compliance; 2) Problems and suggested corrective actions and/or 3) Possible violations to be considered for possible enforcement action by the Mined Land Reclamation Board. **OPERATORS SHOULD READ THIS REPORT CAREFULLY BECAUSE IT MAY REQUIRE CORRECTIVE ACTION AND/OR RESPONSES TO THE DIVISION IN ORDER TO AVOID CONSIDERATION OF POSSIBLE ENFORCEMENT ACTION BY THE MINED LAND RECLAMATION BOARD.**

MINE NAME: Larimer Quarry OPERATOR: CEMEX, Inc.

COUNTY: Larimer MINERAL: SDG TYPE OF OPERATION: 112

INSPECTOR(S): Erica Crosby

MINE ID # OR PROSPECTING ID #: M-1977-341

INSPECTION DATE: 4/20/04

DATE OF COMPLAINT: 12/10/03

INSPECTOR'S INITIALS: ESC

TIME OF DAY (MILITARY): 10:30

INSPECTION TYPE CODE⁽¹⁾: MI

POST INSP. CONTACTS⁽²⁾: CT

JOINT INSP. AGENCY CODE⁽²⁾: NO

REASON FOR INSP. CODE⁽³⁾: CT

WEATHER CODE⁽⁴⁾: CR

BOND CALCULATION TYPE⁽⁵⁾: NN

OP. REP. PRESENT: George Martin; CEMEX, Inc.

1. INSPECTION TYPE CODE - [CL-IN: IL=Illegal Operation, MI=Monitoring, MP=Mineral Prospect, SI=Surety-related, PR=Pre-operation]
2. POST INSPECTION CONTACTS AND JOINT INSPECTION AGENCY CODE - [CL-AG: NO=None, BL=BLM, CH=Colo. Dept. Health; CL=Land Board, CT=Citizen; CW=Wildlife, FS=Forest Service, HW=Hwy. Dept., LG=Local Government, SE=State Engr.]
3. REASON FOR INSPECTION CODE - [CL-RS: AG=Other Agency Request, CT=Citizen Complaint, IE=Normal I&E Program, HP=High Priority, PY=Priority]
4. WEATHER CODE - [CL-WE: CL=Cloudy, CR=Clear, IN=Inclement - prevented inspection, RN=Raining, SN=Snowing, WD=Windy]
5. BOND CALCULATION TYPE: - [BC=Complete Bond, BP=Partial Bond, NN=None]

This list identifies the environmental and permit parameters inspected and gives a categorical evaluation of each. **IF PB OR PV IS INDICATED, YOU SHOULD READ THE FOLLOWING PAGES CAREFULLY IN ORDER TO ASSURE COMPLIANCE WITH THE TERMS OF YOUR PERMIT AND APPLICABLE RULES AND REGULATIONS.** If PV is indicated, you will be notified under separate cover when the Mined Land reclamation Board will consider possible enforcement action.

GENERAL INSPECTION TOPICS

(AR) RECORDS Y (FN) FINANCIAL WARRANTY Y (RD) ROADS Y
(HB) HYDROLOGIC BALANCE Y (BG) BACKFILL & GRADING Y (EX) EXPLOSIVES Y
(PW) PROCESSING WASTE/TAILING Y (SF) PROCESSING FACILITIES Y (TS) TOPSOIL Y
(MP) GENL MINE PLAN COMPLIANCE. Y (FW) FISH & WILDLIFE Y (RV) REVEGETATION Y
(SM) SIGNS AND MARKERS Y (SP) STORM WATER MGT PLAN ... Y (SB) COMPLETE INSP Y
(ES) OVERBURDEN/DEV. WASTE Y (SC) EROSION/SEDIMENTATION Y (RS) RECL PLAN/COMP .. Y
(AT) ACID OR TOXIC MATERIALS NA (OD) OFF-SITE DAMAGE NA (ST) STIPULATIONS NA

Y = Inspected and Found in Compliance
N = Not Inspected

PV = Inspected and Possible Violations Noted
NA = Not Applicable

PB = Inspected and Problems Noted

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OBSERVATIONS

This was an inspection of the Larimer Quarry conducted by Erica Crosby of the Division of Minerals and Geology. George Martin of CEMEX, Inc. was present during the inspection. The purpose of the inspection was to inspect areas of concern identified by Mr. Terry Parrish in a citizen complaint letter received by the Division on December 10, 2003. The inspection was delayed until the spring of 2004 due to weather conditions. Mr. Parrish was contacted on two occasions regarding the inspection (via e-mail and phone message), but did not attend the inspection.

The letter sent by Mr. Parrish notes the following concerns;

- The Parrish Ranch Conservation Partnership, new owners of the land, do not agree that "revegetation" has occurred as stated in the TR from Cemex to the State of Colorado of July 31, 2003. New soil was brought up to restabilize the land, however, Cemex did not plant any grass seed through the entire growing season. The areas are overgrown with vine weed and some yellow flowered weed.
- The Parrish Ranch still maintains that the large chunks of rock that were rolled over the edge and down into the draw and waterway as we discussed during your inspection in the spring, should be cleaned up by Cemex before release of the bond.
- The roads are not essential to ranch operations, but they may have limited potential for future development.

The Larimer Quarry is a surface limestone operation with a permit area of 208 acres. The permit was issued on October 26, 1978 to Marten Marietta Cement for a 196-acre area. The permit was amended in 1987 to add an additional 12.8 acres to the south. On August 17, 2001, the permit was transferred to CEMEX, Inc. Technical Revision 01 (TR-01) was filed by CEMEX on August 4, 2003 to address the construction of the substation constructed by Poudre Valley Rural Electric Association, Inc. and the retention of roads throughout the site.

The reclamation plan calls for slopes to be reclaimed to 3h:1v and reference is also made to 2h:1v reclaimed slopes. The required topsoil replacement depth ranges from 6"-10." The reclamation plan calls for the site to be seeded with a dryland seed mixture at a rate of 25 to 75 pounds per acre. Ammonium nitrate fertilizer is then applied at a rate of 200 to 300 pounds per acre to facilitate growth.

Topsoil Replacement and Revegetation- Topsoil has been hauled in and spread over the lower area of the C-Pit. This work was conducted in response to the Division's inspection of December 6, 2002 that identified erosion problems in the area. According to George Martin, approximately 5,000-6,000 tons of topsoil was replaced on 4-acres of disturbed land in the fall of 2003. The area was revegetated in February, 2004 with a dryland seedmixture. Vegetation was starting to emerge in this area, but may take a few years to fully establish. The operator will need to control the presence of noxious weeds in this area if they are present. All parties should be reminded that vegetation must be established before the site can be released in its entirety.

Rocks- Large rocks were pushed over the edge of the B-Pit into undisturbed land within the permit boundary. The rocks are located on the west side of the B-pit where mining did not occur. The rocks vary in size from 6" in diameter to over 2 feet in diameter. The rocks appear to be remnants of blasted overburden and limestone mined from the quarry in the 1990's. The natural slope of the undisturbed area is 2h:1v or less. Access to these steep slopes is limited in nature, and the additional rocks should not pose any additional hazard or conflicts to the postmining land use of rangeland. The Division does not believe that these rocks conflict with the postmining land use of rangeland, and do not need to be removed by the operator.

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Existing Roads on Site- CEMEX submitted TR-01 to address roads constructed within the A and C Pits that were not identified in the Reclamation Plan Map of June 11, 1987. The landowner consented to leaving the roads in place in a letter dated June 25, 2003. On November 12, 2003, the Division notified the landowner of the pending revision. The retention of the roads do not conflict with the postmining land use of rangeland, therefore, the revision was approved.

I & E Contact Address

NAME Mr. John Lohr
OPERATOR CEMEX, Inc.
STREET P.O. Box 529
CITY/STATE/ZIP Lyons, CO 80540

- ☐ CE
- ☐ BL
- ☐ FS
- ☐ HW
- ☐ HMWMD (CH)
- ☐ SE
- ☐ WQCD (CH)

Cc: Carl Mount; DMG (via electronic transmission)

Mr. Terry Parrish
15715 parrish Road
Berthoud, CO 80513



4/20/2004
Erosion features at base of C-Pit



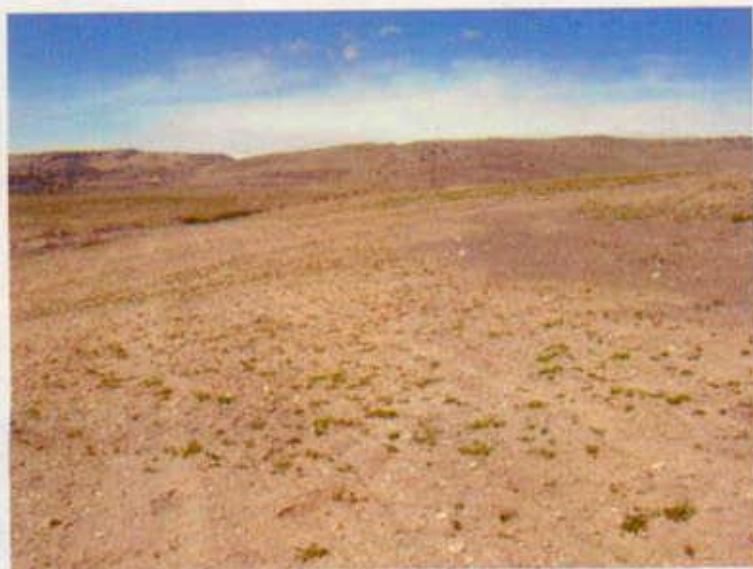
4/20/2004
C-Pit; topsoiled & seeded in 2003 & 2004



4/20/2004
Topsoil Replaced & Reseeded at base of C-Pit



4/20/2004
Topsoil & Revegetation at base of C-Pit



4/20/2004
C-Pit looking West



4/20/2004
Erosion feature at base of C-Pit



4/20/2004
B-Pit; rocks on undisturbed area



4/20/2004
B Pit- looking down at rocks



4/20/2004
B-Pit; rocks in undisturbed area



4/20/2004
B Pit- Area handseeded



4/20/2004
B-Pit; Area reseeded



4/20/2004
B-Pit; Area reseeded by hand



4/20/2004
View of B-Pit Area reseeded



4/20/2004
B-Pit slope that was hand seeded